

unclear which of these witnesses were legally required to attend the various proceedings and it is unclear what justifies such high daily rates. The court finds witness lodging is reasonably necessary to the prosecution of the case. (Code Civ. Proc., § 1033.5, subd. (c).) The court strikes daily fees in excess of \$35 and limits mileage to a rate of \$0.70 cents per mile, striking \$5,553.25 from witness costs.

Court ordered transcripts (\$17,913.50)

Defendant challenges court ordered transcripts as a disallowed cost under Code of Civil Procedure section 1033.5(b)(5). The court agrees and taxes costs in the amount of \$17,913.50.

Other (\$16,430)

Defendant challenges mediation expenses, “In-Court Litigation Consulting at Hearing on 5/1/23,” and “Strategic Multimedia Exhibit Presentation and Consulting and editing of deposition video clips for use during trial.” Engaging in alternate dispute resolution such as mediation is always an important endeavor, even if those efforts are unsuccessful. The court finds the mediation costs to be reasonably necessary to the litigation and denies the motion to tax as to these costs. While the two other categories are insufficiently explained in plaintiffs’ costs memorandum and attachments thereto, defendant has properly put these items at issue and the burden is on the plaintiffs to show the costs are reasonably necessary. While plaintiffs provide a reasonable explanation as to both “In-Court Litigation Consulting at Hearing on 5/1/23” and “Strategic Multimedia Exhibit Presentation and Consulting and editing of deposition video clips for use during trial,” that information is not supported by any evidence. Accordingly, the court taxes costs in the amount of \$8,980.

10% Offset

Finally, given defendant’s limited success on the issue of the 1980 agreement, a 10% reduction of recoverable costs is appropriate. For this reason, costs are taxed an additional \$10,951.30.

Based on the foregoing, the motion to tax costs is granted in part. Plaintiffs’ claimed costs are taxed in the total amount of \$43,398.05. The motion is otherwise denied, and plaintiffs may recover costs from defendant in the amount of \$98,561.75.

3. S-CV-0048923 Volkmar, Rodney v. Nortech Waste LLC

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Final Approval of Class Action Settlement

Plaintiff seeks preliminary approval of the parties' class action settlement. The motion is supported by insufficient notice. All moving papers and supporting documents shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended by two court days when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

The court also observes the class notice and the declaration of counsel Kevin Mahoney both refer to attorneys' fees in the amount of \$68,716.67. However, the court preliminarily approved attorneys' fees of \$67,050, which is one-third of the gross settlement amount and the amount included in the class action settlement agreement. (Mahoney Decl., Exh. A, sec. 4.2.2.) For clarity, the court does not intend to change its order for preliminary approval and when the court can reach the merits of the motion, the court intends to limit attorneys' fees to \$67,050.

The motion for final approval is continued to **August 18, 2026 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a notice of continued hearing on defendant and file a proof of service by August 4, 2026.

4. S-CV-0049242 David, Dennis v. Taylor Morrison of Cal.

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendants' Demurrer to Complaint

Defendants demur to the second through fourth causes of action alleged in the complaint for breach of contract, breach of express warranty, and breach of the implied warranty of merchantability. Plaintiffs oppose this motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10 (e), (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)